

1.

CASE #	CASE NAME	HEARING NAME
CVPS2302061	FENSON VS AMERICAN HONDA MOTOR COMPANY, INC.	HEARING ON PETITION RE: ARBITRATION AWARD

Tentative Ruling: No opposition filed.

Petition to Confirm Arbitration Award GRANTED.

Petitioner/Defendant to submit a proposed order within 10 days.

OSC re status of case set for 8.04.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2504791	GARCIA VS TOP STONEWORKS INC.	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO DEFENDANT'S SPECIAL INTERROGATORIES, SET ONE AND REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND PLAINTIFF'S COUNSEL IN THE AMOUNT OF \$1827.50 BY 42ND PALM DESERT LLC

Tentative Ruling: Under CCP § 2031.310(a), a propounding party may move for an order compelling further responses to RFPs where “(1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or (3) an objection in the response is without merit or too general,” and the motion must be accompanied by a meet-and-confer declaration under section 2016.040. The same standard applies to motions to compel further responses to FROGs and SROGs under CCP § 2030.300(a), and likewise requires a reasonable and good faith attempt at informal resolution under section 2016.040. The court “shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP §§ 2030.300(d), 2031.310(h).)

The motions are largely moot as Plaintiff served substantive verified supplemental responses to all three sets of discovery before the hearing. Any remaining dispute as to the sufficiency of those supplemental responses is not before the Court on these motions, which were directed at the original objection-only responses.

Monetary sanctions, however, are warranted. Plaintiff served objection-only responses on March 25, 2026, and did not serve substantive responses until after the motions were filed, with verifications not served until May 15, 2026. Moreover, Plaintiff’s counsel failed to respond to Defendant’s counsel’s meet-and-confer communications between March 26, 2026 and April 17, 2026. While Plaintiff attributes the delay to an “internal administrative error,” he offers no explanation for counsel’s failure to respond to the multiple meet-and-confer attempts, and has demonstrated no substantial justification or other circumstances that would make the imposition of sanctions unjust.

Motion to Compel Further Responses to Defendant's Special Interrogatories, Set One, is MOOT.

Request for Sanctions GRANTED. Plaintiff to pay \$600 + 60 (filing fees) for a total of \$660, within 30 days to Counsel for Defendants.

Trial Setting Conference is continued to 12.03.26. Parties are ordered to submit a JOINT Trial Setting Conference declaration, addressing the items previously ordered on 1.20.26. The joint declaration shall be on pleading paper, do not use form CM-110 that is for Case Management statements.

Order to Show Cause re TSC declaration is continued to 12.03.26. Failure to submit a timely joint TSC declaration will result in sanctions.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2504791	GARCIA VS TOP STONEWORKS INC.	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO DEFENDANT'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE AND REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND PLAINTIFF'S COUNSEL IN THE AMOUNT OF \$1827.50 BY 42ND PALM DESERT LLC

Tentative Ruling:

Motion to Compel Further Responses to Defendant's Request for Production of Documents, Set One, is MOOT.

Request for Sanctions GRANTED. Plaintiff to pay \$600 + 60 (filing fees) for a total of \$660, within 30 days to Counsel for Defendants.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2504791	GARCIA VS TOP STONEWORKS INC.	MOTION TO COMPEL PLAINTIFF'S FURTHER RESPONSES TO DEFENDANT'S FORM INTERROGATORIES, SET ONE AND REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND PLAINTIFF'S COUNSEL IN THE AMOUNT OF \$1827.50 BY 42ND PALM DESERT LLC

Tentative Ruling:

Motion to Compel Further Responses to Defendant's Form Interrogatories, Set One, is MOOT.